



SPONSOR: Rep. Harris & Sen. Poore
Reps. Chukwuocha, Lambert

HOUSE OF REPRESENTATIVES
153rd GENERAL ASSEMBLY

HOUSE BILL NO. 165

AN ACT TO AMEND TITLE 24 OF THE DELAWARE CODE RELATING TO DRY NEEDLING.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF DELAWARE:

Section 1. Amend Chapter 17, Title 24 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows and by redesignating accordingly:

§ 1770A. Physician assistants; definitions.

For purposes of this subchapter:

(4) "Dry needling" means an intervention that meets all of the following criteria:

a. Uses a thin filiform needle to penetrate the skin and stimulate underlying muscular tissue, connective tissues, and myofascial trigger points for the management of neuromusculoskeletal pain and movement impairments.

b. Is based upon Western medical concepts.

c. Requires a physician assistant exam and diagnosis.

(6) "Trigger points" means hyperirritable spots in skeletal muscle that are associated with palpable nodules in taut bands of muscle fibers. They can give rise to local or referred pain, autonomic phenomenon, and can cause limitations in range of motion and muscle activation.

§ 1774F. Dry needling practice; referral.

(a) A physician assistant may perform dry needling, subject to the following restrictions:

(1) A physician assistant may not perform a dry needling procedure on a patient without first receiving a written physician referral specific to dry needling. A referral may be transmitted by digital means.

(2) A physician assistant may not advertise or in any other way hold himself out as an acupuncturist unless the physician assistant is a licensed acupuncturist.

(b) The Board must establish, by rule and regulation, training and practice standards for dry needling by physician assistants.

Section 2. Amend Chapter 19, Title 24 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows and by redesignating accordingly:

§ 1902. Definitions.

(f) “Dry needling” means an intervention that meets all of the following criteria:

a. Uses a thin filiform needle to penetrate the skin and stimulate underlying muscular tissue, connective tissues, and myofascial trigger points for the management of neuromusculoskeletal pain and movement impairments.

b. Is based upon Western medical concepts.

c. Requires a practical nursing exam and diagnosis.

(v) “Trigger points” means hyperirritable spots in skeletal muscle that are associated with palpable nodules in taut bands of muscle fibers. They can give rise to local or referred pain, autonomic phenomenon, and can cause limitations in range of motion and muscle activation.

§ 1939. Dry needling practice; referral.

(a) A certified nurse practitioner may perform dry needling, subject to the following restrictions:

(1) A nurse practitioner may not perform a dry needling procedure on a patient without first receiving a written physician referral specific to dry needling. A referral may be transmitted by digital means.

(2) A nurse practitioner may not advertise or in any other way hold themselves out as an acupuncturist unless the nurse practitioner is a licensed acupuncturist.

(b) The Board must establish, by rule and regulation, training and practice standards for dry needling by certified nurse practitioners.

Section 3. Amend Chapter 20, Title 24 of the Delaware Code by making deletions as shown by strike through and insertions as shown by underline as follows and by redesignating accordingly:

§ 2002. Definitions.

As used in this chapter:

(4) “Dry needling” means an intervention that meets the following criteria:

a. Uses a thin filiform needle to penetrate the skin and stimulate underlying muscular tissue, connective tissues, and myofascial trigger points for the management of neuromusculoskeletal pain and movement impairments.

b. Is based upon Western medical concepts.

c. Requires an occupational therapy examination and diagnosis.

(8) (9) a. “Occupational therapy services” includes any of the following:

1. The assessment, treatment, and education of or consultation with an individual, family, or other persons.

2. Interventions directed toward developing, improving, or restoring daily living skills, work readiness or work performance, play skills, or leisure capacities, or enhancing educational performance skills.

3. Providing for the development, improvement, or restoration of sensorimotor, oralmotor, perceptual or neuromuscular functioning, or emotional, motivational, cognitive, or psychosocial components of performance.

b. "Occupational therapy services" or "practice of occupational therapy" may require assessment of the need for use of interventions such as the design, development, adaptation, application, or training in the use of assistive technology devices; the design, fabrication, or application of rehabilitative technology such as selected orthotic devices; training in the use of assistive technology, orthotic or prosthetic devices; the application of thermal agent modalities, including paraffin, hot and cold packs, and fluído therapy, as an adjunct to, or in preparation for, purposeful activity; the use of ergonomic principles; the adaptation of environments and processes to enhance functional performance; dry needling; or the promotion of health and wellness.

c. [Repealed.]

(9) (10) "Person" means a corporation, company, ~~association, or association~~, partnership, or an individual.

(14) "Trigger points" means hyperirritable spots in skeletal muscle that are associated with palpable nodules in taut bands of muscle fibers. They can give rise to local or referred pain, autonomic phenomenon, and can cause limitations in range of motion and muscle activation.

§ 2022. Dry needling practice; referral.

(a) An occupational therapist may perform dry needling subject to the following:

(1) An occupational therapist may not perform a dry needling procedure on a patient without first receiving a written physician referral specific to dry needling. A referral may be transmitted by digital means.

(2) An occupational therapist may not advertise or in any other way hold themselves out as an acupuncturist unless the occupational therapist is a licensed acupuncturist.

(b) The Board must establish, by rule and regulation, training and practice standards for dry needling.

Section 4. This Act takes effect 6 months after its enactment into law.

SYNOPSIS

This Act authorizes physician assistants, occupational therapists, and nurse practitioners to practice dry needling. This Act sets forth requirements and limitations pertaining to the practice of dry needling. Dry needling may not be performed without a physician referral, and physician assistants, nurse practitioners, and occupational therapists may not hold themselves out as acupuncturists unless they are licensed acupuncturists.